The case of Rafał Wróbel: an RDN order with defective instructions applicable to a decision and a contradictory procedure for challenging it

RDN, the Voivodeship Administrative Court and a procedure in which the party could not safely choose a route or calculate time limits

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> Translation note: This companion translates the entire selectable text of the 14-page Polish source, including its figure captions. The document facsimiles remain in the unchanged Polish PDF; their source-page locations are given with the captions. Text appearing only inside those images has not been reconstructed or independently translated. Statements about the stage of proceedings retain the perspective of the dated Polish original. RDN denotes the Council of Scientific Excellence; WSA denotes the Voivodeship Administrative Court. The distinction between an *order* (*postanowienie*) and a *decision* (*decyzja*) is retained throughout.

This text continues an earlier article published on the website of the Science Watch Polska Foundation: https://sciencewatch.pl/544-sprawa-profesury-rafala-wrobla-dokumenty-zut-rdn-finansowanie-obslugi-prawnej-i-wszczete-sledztwo.

The first article showed that Rafał Wróbel's case does not begin with a single set of defective instructions on legal remedies. Different versions or reproductions of documents appeared in circulation between ZUT and RDN, requiring clarification of their authenticity, the issuer's version and their circulation. For one file attributed to a letter from RDN, a PUESC report indicated an integrity problem. Documents concerning external legal services referred both to an objective that included "finally removing from legal circulation" Wróbel's habilitation resolution and to funding those services from funds described as other revenue from the teaching activities of WTiICh. The case also acquired a prosecutorial dimension, in which the need arose to secure computer data storage media at ZUT.

This article concerns the next layer of the same case: RDN's act of 29 September 2025, headed "Order" but operating in its instructions as a decision with a route to WSA. Wróbel first submitted to RDN a letter of 19/20 January 2026, formally entitled an application for reconsideration of the case and lodged as a procedural precaution. RDN did not then clearly communicate to him that it was accepting the letter as a timely legal remedy and would examine it. Only after a complaint had been lodged with WSA did RDN, in its response to the court, take the position that Wróbel's January letter should be treated as a timely application for reconsideration, and that the case was to continue before RDN as the "second instance".

> Put simply, the problem was not merely whether to call RDN's act of 29 September 2025 a decision or an order. Each classification meant a different procedure, a different method and place for submitting a document, and a different time limit. Wróbel could not safely choose only one route.

> Had he confined himself to a complaint to WSA, he might have been told that he should first have initiated the procedure before RDN — by which point the time limit for that procedure might have been considered missed or become a matter of dispute. Had he confined himself to a letter addressed to RDN, he might have faced the opposite objection: that the instructions indicated a judicial route and that the time limit for a complaint to WSA had already expired. Taking action along both routes was therefore a way of protecting the party against the consequences of inconsistent instructions and the changing classification of the act.

This is not about a typographical error or a dispute over a word in a heading. It is about whether, in proceedings concerning a particular person's academic career, a public authority can state unambiguously which act has legal effect, which remedy is available to the party, which procedure has been initiated, and when the time limit starts to run. Such instability of classification creates a practical dilemma for the party: any of the possible choices can later be described as incorrect.

This text does not prejudge anyone's guilt and does not seek a determination of the outcome of the proceedings for the title of professor. It concerns the auditability of the procedure: documents, classification of the act, legal remedies, time limits, and the way a public authority communicates to the party the effects of its own actions.

Thesis

In Rafał Wróbel's case, a situation arose in which the party could not safely choose a single legal remedy or a single route for submitting a document. The same act was headed "ORDER", used the formula "hereby orders" in its operative part, but was called a "decision" in its instructions and directed the party to WSA. In this situation, the dispute is not about language. A decision, an order, an application for reconsideration and a complaint to WSA have different procedural consequences. The party should not bear the risk arising from the authority's unstable classification of its own act.

Figures 01–02. The act of 29 September 2025: the "order" layer and instructions using the category of a decision. *Facsimiles: Polish source, p. 2.*

Subsequently — only in response to Wróbel's complaint to WSA — RDN stated that the ruling had been designated an order instead of a decision, invoked Article 112 of the Code of Administrative Procedure (*k.p.a.*), accepted the party's January letter as a timely application, and stated that the case was currently being handled in the "second instance" by RDN.

Even if defective instructions should not harm the party, this does not resolve the entire problem. The party still needs to know whether they are dealing with a decision, an order, an application for reconsideration, a complaint to a court, a request to expedite proceedings, or another mode of action by the authority. Otherwise, it is impossible to establish safely the correct route for submitting a document, the time limit, or the procedural consequences of one's own action.

The problem is not editorial. The changing classification of the same act begins to produce real procedural consequences: it affects the legal remedy, the time limit, the method and place for submitting a document, and the scope of protection afforded to the party. An authority should not first create ambiguity and then choose the classification that is procedurally more convenient for it at a given moment.

> Why does this matter? These are not neutral routes that can be mixed at will. The classification of the act determines whether the party should take the case to court through the authority, apply to the same authority for reconsideration, lodge a request to expedite proceedings, wait for service of another act, or calculate a time limit from an earlier letter. The procedure cannot be constructed so that every route chosen by the party can later be presented as incorrect.

Brief chronology

- **29 September 2025** — RDN issues an act headed “Order”, with instructions using the category of a decision.
- **8 January 2026** — the act is served on Rafał Wróbel, according to the party’s letter.
- **19/20 January 2026** — preparation and posting of a letter formally entitled an application for reconsideration of the case, substantively challenging the discontinuation of proceedings and submitted as a procedural precaution.
- **22 January 2026** — a supplement is sent to RDN requesting clarification of the legal nature of the act and the documents.
- **26 January 2026** — a separate, general response from RDN concerning qualified signatures and the safeguarding of documents in EZD, the electronic document management system. This was not an unambiguous answer to Wróbel as to whether his January letter had been accepted for examination.
- **9 February 2026** — Rafał Wróbel lodges a complaint with WSA against RDN’s act of 29 September 2025, in parallel with the remedy submitted to RDN.
- **20 February 2026** — RDN responds to WSA, arguing that the act had been designated an order instead of a decision and referring to a “second instance handled by RDN”.
- **21/23 April 2026** — the party submits a letter about the stage of the case, and RDN replies that its examination of the application ended on 30 March 2026 and that a decision will be sent.
- **27 April 2026** — a broad request for public information is submitted concerning, among other matters, RDN/ZUT documents, the issuer’s versions, legal services, RDN’s response to WSA, and the provision of material to members of the competent body.
- **8 May 2026** — the first article is published on the Science Watch Polska Foundation’s website.
- **11 May 2026** — RDN sets a new deadline of 26 June 2026 for responding to the request for public information, citing the complexity of the case and the need for a thorough analysis.

1. The party did not invent the problem after the event

The problem of an “order called a decision” was not added to the case only after later procedural disputes. It appeared at the very beginning of the party’s response.

On 19 January 2026, Rafał Wróbel prepared a letter formally entitled an application for reconsideration of the case. In substance, it was not a neutral request to “take another look” at the case. Wróbel challenged the act discontinuing the proceedings for the title of professor, sought its revocation, and requested that the proceedings continue and the case be brought to a decision on the merits.

Figures 03–04. The letter of 19 January 2026: its formal title and the reasons for taking a procedural precaution. *Facsimiles: Polish source, p. 3.*

The letter was then posted as a priority registered letter. Poczta Polska's tracking information gives the tracking number 00259007734398789005, the posting date of 20 January 2026, the item type as a priority registered letter, the additional service "acknowledgement of receipt", and a status indicating that the item was received.

Figure 05. Tracking of item 00259007734398789005: received status and item details, including the posting date of 20 January 2026 and the acknowledgement-of-receipt service. *Facsimile: Polish source, p. 4.*

The reasoning is the most important part. Wróbel pointed out that the act of 29 September 2025 was headed "Order", but its instructions used the term "decision" and included instructions on the procedure and time limit for challenging it. The letter was therefore submitted as a procedural precaution, to preserve the time limits arising from the instructions, regardless of the classification used by the authority.

This shows that the party was not trying to exploit the ambiguity. On the contrary, he was trying to protect his rights in a situation of ambiguity created on the authority's side.

Nor did Wróbel confine himself to one route. After analysing the possible classifications of the act and their procedural effects, he adopted a precautionary approach: he initiated the route before RDN while also taking the matter to WSA. This was not a multiplication of proceedings for its own sake, but an attempt to guard against two opposing risks: the objection that he had gone to court too early, and the objection that he had gone too late or to a different body from the one indicated in the instructions.

2. The supplement of 22 January: a request to put the record in order

On 22 January 2026, Wróbel sent RDN a supplement to his letter of 19 January 2026. It referred to the postal item of 20 January 2026 and to the same case reference: DRKN.Z2.401.17.2023.

The supplement emphasised that the letter contained no allegations against RDN. Its purpose was to obtain official confirmation of whether the attached documents had been produced and authorised by RDN and, if so, how their authenticity could be verified.

The attachments included RDN's letter to the Rector of ZUT dated 18 October 2023, a PUESC report indicating a signature-validation problem for that file, and a scan of a letter bearing the stamp of ZUT's Main Chancellery. This connected the procedural issue with the documentary issue described in the first article.

Figures 06–07. The supplement of 22 January 2026: the purpose of the letter and the request for an unambiguous statement of the act's legal nature. *Facsimiles: Polish source, p. 5.*

The final point of the supplement was crucial. Wróbel requested an unambiguous statement of the legal nature of the act or acts to which the proceedings in case DRKN.Z2.401.17.2023 related — a decision, an order, or another act — and instructions on the appropriate remedy.

In other words, as early as January, the party was asking RDN exactly the questions that later became central to the dispute. What is the act? What legal remedy is available? What exactly is the authority processing?

3. RDN answered about EZD but did not explain to Wróbel the effects of his letter

On 26 January 2026, RDN gave a brief, general response concerning qualified signatures and the safeguarding of documents in EZD. Such a response could address the question of document authenticity, the issuer's versions, and trust in the EZD system.

It was not, however, an unambiguous answer to Wróbel's key procedural problem: whether his January letter had been accepted for examination, which procedure it had been assigned to, and from when the authority was calculating the time limit for issuing an act.

This distinction matters. Wróbel was asking about the legal nature of the act and the appropriate remedy, not merely whether documents held in EZD were protected. The available material does not show that, before the judicial stage, RDN separately informed Wróbel that it was treating his January letter as a timely application for reconsideration. Wróbel learned of that position only from the court correspondence: when WSA called on him to remedy formal defects in his complaint, it also served him with a copy of RDN's response to the complaint.

A separate problem concerns the form of the documents presented to the party and to the court. If a document bearing an electronic signature is provided to the party as a printout, a scan or another unverifiable reproduction, the party does not receive material that would allow them independently to check the signature, the file's integrity, its metadata, or the issuer's version.

It is therefore necessary to establish not only what RDN wrote in its response to the complaint, but also the form in which the earlier acts circulated: as native electronic documents, documents served through ePUAP or e-Doręczenia, copies supplied by the court, printouts, scans, or other reproductions. If the dispute concerns whether a document can be verified, its form is not a technical detail.

4. An order called a decision

The safest description of the act of 29 September 2025 is "an order called a decision". Not because such a category exists in law as a separate type of act. On the contrary: precisely because it does not.

The expression captures the communication and procedural problem. One layer of the document said: order. Another layer said: a final decision with a route to WSA.

The party's dilemma was straightforward. Had Wróbel gone only to WSA, he might have been told that he should first have initiated the procedure before RDN — by which point the time limit for that procedure might have been considered missed or become a matter of dispute. Had he gone only to RDN, he might have faced the opposite objection: that the instructions indicated a judicial route and the time limit for a complaint to WSA had already expired. Submitting documents along both routes was therefore not a multiplication of proceedings, but an attempt to safeguard the party's rights against the consequences of inconsistent instructions and the changing classification of the act.

This is a dilemma built into the procedure, not a question of style. A public authority should not create ambiguity in its own act and then choose the classification that, at a given moment, strengthens its procedural position and weakens that of the party. The risk of that ambiguity should fall on the authority that created it, not on the party to the proceedings.

5. What does “second instance handled by RDN” mean?

In its response to Wróbel’s complaint to WSA, RDN stated that the case was currently being handled in the “second instance” by RDN. This wording requires explanation.

Figures 08–09. RDN’s response to WSA of 20 February 2026: the title page and an extract from the reasoning concerning a ruling designated an order instead of a decision, Article 112 of the Code of Administrative Procedure, and the “second instance handled by RDN”. *Facsimiles: Polish source, p. 6.*

In the conventional administrative model, there is a first-instance authority and an appellate authority. For special bodies, or bodies whose acts are not subject to an ordinary appeal, an application to the same body for reconsideration of the case may provide a means of protection. Colloquially, this can be described as a “second instance”, but formally it is necessary to state exactly what is being reconsidered.

That is not obvious in this case. Is RDN reconsidering the decision to discontinue the proceedings for the title of professor? Is it examining a remedy against an act that it itself called an order, but later considered should have been a decision? Is it processing the consequences of an earlier application to resume the suspended proceedings and simultaneously discontinue them? Or is it conducting a further stage of the proceedings for the title of professor after resuming the suspended proceedings?

Without answers to these questions, it is impossible to establish which time limit is running, when it began, whether the authority is in delay, or which act has legal effect.

6. Four alternatives that require clarification

In practice, RDN should state which of the following alternatives it considers correct. Each has different consequences for the party:

- If RDN is examining an application for reconsideration of the act of 29 September 2025, it should specify the date of receipt, the legal basis, the time limit for examining the case or issuing an act, and any notice of delay.
- If RDN is continuing the proceedings for the title of professor after resuming the suspended proceedings, it should identify the stage of the case, the act having legal effect, and the time limit applicable to the main proceedings.
- If RDN is merely communicating that a decision has been taken or is to be sent, it should specify when the decision was taken, when the act was drawn up, its signature, its content, and when it was served. The party defends their rights in relation to an act that has been served, not an announcement.
- If RDN treats the same act sometimes as an order and sometimes as a decision, it should state the act’s official classification and the consequences of that classification for the remedy. The party cannot be made to bear the risk associated with classifying the act.

Under each alternative, the authority should identify its own action and state its effects. It is not enough to say before WSA: “we are the ones who should examine this”. It must also explain exactly what is being examined, within what time limit, and on what basis.

The problem of time limits does not disappear under any of the possible classifications of the January letter. If RDN considered that, after resuming the suspended proceedings, it was still conducting the proceedings for the title of professor, it should explain how it calculated the time limit for examining them or issuing an act, which periods it considered excluded from that calculation, and whether and when it notified the party of the reasons for the continued processing. If, on the other hand, RDN treated the January letter as an application for reconsideration, it should explain which time limit it applied to that procedure and whether it fulfilled its duties to inform the party.

Under both alternatives, the problem already existed when RDN prepared its response to Wróbel’s complaint to WSA. The authority should either have examined the case, clearly communicated to the party that the procedure in question had not been effectively initiated, or formally given notice of delay and its reasons. None of these interpretations justifies months of uncertainty as to which act has legal effect, which procedure is being conducted, or from when the time limit for examining the case or issuing an act is calculated.

7. The letter of 21 April and RDN’s response of 23 April

On 21 April 2026, Rafał Wróbel wrote to RDN requesting a statement of the current stage of the case, clarification of whether the January application had been effectively accepted for examination, the legal basis of the procedure currently being followed, the date on which the time limit began to run, and information on whether the party had been served with a notice under Article 36 of the Code of Administrative Procedure.

Figures 10–11. The letter of 21 April 2026 about the stage of the case, and RDN’s letter of 23 April 2026, bearing the electronic signature of Prof. dr hab. Grzegorz Węgrzyn, Deputy Chair of RDN, stating that processing had been completed and announcing that a decision would be sent. *Facsimiles: Polish source, p. 8.*

The letter also asked which RDN act currently had legal effect: the act concerning resumption of the proceedings, the act concerning discontinuation, or another act issued later. If RDN had not issued a ruling in the matter initiated by the January application, the letter was also to be treated as a request to expedite proceedings.

On 23 April 2026, RDN replied that processing of the application had been completed on 30 March 2026 at a meeting of the Presidium of the Council of Scientific Excellence, and that the relevant decision would be sent shortly.

This response matters, but it does not remove the problem. If processing was said to have ended on 30 March 2026, one must ask exactly what had been completed, what act had been adopted, when it was drawn up, who signed it, when it was sent, when it was served, and from when the party could effectively defend his rights.

In administrative proceedings, the party does not defend their rights against an announcement, technical information, or a general communication. They do so in relation to an act they know, which has been served on them, and whose content they can challenge. A statement that a decision will be sent does not replace service of the decision.

8. The request for public information as a test of the procedure's auditability

These questions are not a reconstruction made only after the event. On 27 April 2026, a broad request for access to public information concerning case DRKN.Z2.401.17.2023 was submitted to RDN. It was addressed not only to the chancellery, but also to the Chair, Deputy Chair and the relevant panel or body handling the case. The applicant also requested that the letter be added to the case file, or that the legal basis for refusal be given, and that it be passed to members of the competent body before any further processing.

Figure 12. The request for access to public information (UDIP) of 27 April 2026: the layout of the letter, addressees, questions, list of attachments, and the author's signature/address. *Facsimile: Polish source, p. 9.*

The scope of the questions corresponded to the problems described in this article. Among other matters, the request concerned RDN's external legal services, possible authorship or joint authorship of RDN's response to WSA, the meaning of the expression "second instance handled by RDN", internal verification of its procedural position, the issuer's versions of RDN's letters, RDN/ZUT documents, the funding of legal services, and the provision of material to members of the competent body before further processing.

In its separate January response concerning EZD, RDN wrote in general terms that letters addressed to the relevant institutions bore the appropriate qualified signature and that documents held in EZD were properly secured. Such a response could suggest that the problem was straightforward: the documents were in the system, the signatures were appropriate, and the matter was under control.

After the request of 27 April, RDN no longer responded in that way. On 11 May 2026, it set a new deadline of 26 June 2026 for answering the request, citing its complexity, the scope of the information requested, and the need for a thorough and complete analysis of what could be disclosed.

Figure 13. RDN's response of 11 May 2026: setting a new deadline of 26 June 2026 for answering the request because of its complexity and the scope of the information requested. *Facsimile: Polish source, p. 10.*

This is not an objection to the extension itself. It is important information about the nature of the case. If, according to RDN, answering questions about documents, versions, legal services, its position before WSA and the provision of material to members of the body requires additional time and a full analysis, it is difficult simultaneously to maintain that the problem was obvious, purely formal, or merely a matter of public commentary.

An authority should not treat a case as obvious when making a ruling, and as complicated when it has to explain the documents on which that ruling may have been based.

9. The evidential context: sources, metadata and storage media

This article primarily concerns RDN's procedure. It cannot, however, be wholly separated from the broader evidential background. A separate procedural document identified the need to secure computer data storage media at ZUT in Szczecin without delay. The details of the person submitting

the notification have been anonymised in the figure, because what matters for this article is the evidential direction itself: securing sources, metadata, logs and storage media, rather than exposing that person's details.

Figure 14. Evidence box: an extract concerning the need to secure storage media, metadata and logs; the notifying person's details have been anonymised. *Facsimile: Polish source, p. 10.*

This should not be used to prejudge anyone's guilt. What should be asked, however, is whether the source data were secured while they still had their full evidential value, and whether RDN had clarity about the documents and their circulation before proceeding further.

If the dispute concerns document versions, signatures, files, metadata and transmission channels, simply comparing printouts and scans is not enough. The sources are needed: document management systems, mailboxes, source files, logs, storage media and metadata.

10. External legal services and unequal support

The public record of the BZP procurement procedure for legal services for the RDN Office shows that questions about external legal services are not abstract. This does not establish the extent of a law firm's involvement in Rafał Wróbel's particular case. It does, however, require clarification of who prepared or helped prepare RDN's procedural responses, the scope of the assignments, the costs, and whether the material concerning doubts about the documents was passed to members of the competent body.

Figure 15. The public record of the BZP procurement procedure concerning legal services for the RDN Office. *Facsimile: Polish source, p. 11.*

The point is not that an authority cannot use professional legal services. It is about the standard of transparency. If the authority has professional litigation support, the procedure followed in relation to the party should all the more be unambiguous, auditable, and able to withstand disputes about whether the matter concerned a decision, an order, a "second instance", defective instructions on legal remedies, or another mode of action by the authority.

11. Two notifications to the Ministry and the disciplinary committee

After the documentary and procedural doubts had been described, two separate notifications were sent: the first to the Ministry of Science and Higher Education, as a supervisory notification concerning the standard of RDN's procedures; the second to the disciplinary committee attached to the Minister, as a notification to be recorded and forwarded to the competent body if the circumstances described should be assessed under a different procedure.

This was neither an application to determine the outcome of the proceedings for the title of professor nor an attempt to replace RDN as the competent authority. The notifications concerned the auditability of the procedure: documents, the issuer's versions, circulation of letters, external legal services, the ambiguity of the act, defective instructions on legal remedies, the expression "second instance handled by RDN", and the question of what material members of the competent body had received before proceeding further.

Figure 16. Message headers and the technical record of sending two notifications: to the Ministry of Science and Higher Education (MNiSW), and to the disciplinary committee attached to the Minister. *Facsimile: Polish source, p. 12.*

For the transparency of the material, not only the content of the notifications matters, but also the technical record of their transmission. The message headers show the date, addressees, subject, message identifier and the name of the attached archive. This makes it possible to establish that the material was passed in a documented way to the appropriate institutional addressees, rather than being merely a general public comment.

12. Dr Stefan Becker's statement as a question about the completeness of the material

Dr Stefan Becker's statement of 2023, about which questions were asked in the later request for access to public information, has a separate significance. This document does not by itself determine the outcome of the case or replace the authority's assessment. It does, however, show that material from a person addressing the circumstances of the allegation directly was in circulation.

Figure 17. Dr Stefan Becker's statement of 2023: material whose presence and examination in RDN's case file needed to be clarified. *Facsimile: Polish source, p. 13.*

RDN should therefore be able to state whether it possessed the document, when it was received, to whom it was passed, and whether it was substantively analysed before further processing.

13. The practical effect: ePUAP, WSA and the signature problem

The question of an electronic document's form also arose in practice in connection with the complaint to WSA. Under the structure of administrative court proceedings, the party had to lodge that complaint through RDN, as the authority whose act was being challenged. WSA subsequently called for formal defects in the complaint to be remedied, including by submitting a complaint signed with a qualified electronic signature, a trusted signature or a personal signature. Meanwhile, Rafał Wróbel held UPP/ePUAP acknowledgements documenting the electronic submission of documents.

This does not, in itself, establish that every attachment was correctly signed. It does show, however, that in a dispute about the signature, integrity and form of a document, the determining step should be to examine the document's original electronic form, the UPP/ePUAP acknowledgements, the scope of the signature, and how RDN transmitted the case file to WSA — not merely its paper reproduction.

Figure 18. The Warsaw WSA's request of 19 March 2026 to remedy formal defects in the complaint, including by submitting a complaint signed with a qualified electronic signature, a trusted signature or a personal signature, together with UPP/ePUAP acknowledgements concerning electronic documents submitted by Rafał Wróbel. The comparison shows the practical dimension of the dispute over a document's form: it required clarification of whether the court had received the document's original electronic form with a verifiable signature, or merely a printout, scan or another reproduction lacking a verifiable electronic-signature layer. *Facsimiles: Polish source, p. 14.*

Conclusion

Rafał Wróbel's case shows that, in an academic advancement procedure, the name of an act is not a formality. A decision, an order, reconsideration and a complaint to WSA initiate different routes, different time limits and different risks.

If an authority first calls an act an order, calls it a decision in the instructions, directs the party to court, and then argues in court that the proper route first led back to the same authority, the party should not bear the consequences of that ambiguity. In such a situation, precautionary submission of documents along two routes is not an abuse, but a logical way to protect against missing a time limit.

RDN may determine cases concerning the title of professor. But first it should be able to determine something simpler: what its own act is, which procedure it initiates, how and where the party is to lodge a legal remedy, and when the time limit begins to run.

These are not the last questions that need to be asked about the auditability of the procedure concerning Rafał Wróbel. Matters requiring a separate, document-based examination include how reviewers were selected, missed deadlines for preparing or forwarding reviews, and the response of state institutions to formal applications and notifications concerning this case. That issue, however, falls outside the scope of this article.

First, the fundamental question must be answered: what act was issued, on what legal basis and on the basis of which documents, which procedure was initiated, and whether the party could safely choose a route to legal protection and calculate the time limit.

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